

25STCV12550 25STCV12550

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 25STCV12550 Hearing Date: July 27, 2026 Dept: 516

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2026

Case Name: Douroux

v. The Pep Boys Manny Moe & Jack of California LLC

Case No.: 25STCV12550

Motion: Motion

to be Relieved as Counsel

Moving Party: Counsel for Plaintiff

Opposing Party: None

Tentative Ruling: The

Motion to be Relieved as Counsel is denied.

Plaintiff's

counsel –Molly E.

Hoot- seeks to be relieved as counsel of record for Plaintiff John Douroux. No
opposition was filed.

Discussion

An attorney is entitled to withdraw upon the
consent of the client, or without that consent if approved by the court. (Code
Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904,

915.) In the latter case, counsel must make a motion to be relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The notice to the client must be delivered by personal service, electronic means, or mail. If it is done via mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration confirming the service address to be the most current residence or that it is the client’s last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).)

Here, Counsel Molly E. Hoot (“Counsel”) has complied with the Rules of Court by filing forms MC-051, MC-052, and MC-053.

Counsel states that there has been a breakdown in the attorney-client relationship because Plaintiff has failed to respond to Counsel’s communication.

However, there is also ambiguity in relation to whether Counsel has confirmed Plaintiff’s address to be served. Counsel declares that she confirmed Plaintiff’s address through online research and also that she is unable to confirm Plaintiff’s address. (MC-052) Thus, service is not in accordance with California Rules of Court, rule 3.1362(d).

Thus, the Court denies Counsel’s motion to be relieved as counsel.